SCOPE	
MED Stakeholder:	German Federal Maritime and Hydrographic Agency (in its position as Market Surveillance Authority and Notifying Authority)
MED Item:	All items
Legal basis:	Directive 2014/90/EU, Article 4, Annex II
Key words:	Witnessing of type-approval tests at manufacturers facilities, test facility approval, accredited laboratory, qualified laboratory.
Technical Standards	
Test Methods/Limits	
Acceptance criteria	

Question:

Is it acceptable to perform type examinations and tests described in the MED, Annex II. I. (Module B) para 3 and 4 within the facilities of the manufacturer using his measuring equipment and personnel?

What is the responsibility of the Notified Body if tests are performed in a non-accredited laboratory or one whose accredited scope does not cover the specific tests?

Background

Type tests described in the MED, Module B para 3 and 4, shall in general be performed in testing laboratories which meet the requirements of standard EN ISO/IEC 17025:2005. Deviating from this legal regulation AR GEN-010 offers the possibility for Notified Bodies (NBs) to perform certain tests (normally tests not requiring specialised equipment) to be carried out at the manufacturer's works using his equipment and personnel under the supervision of a NB.
During the last 2 years an EU-sponsored project JAHARP2021-08 had been performed by the Market Surveillance Authorities (MSAs) of Portugal, Norway and Germany. In this project a relevant cross-section of approved Rocket parachute flares, Hand flares and Buoyant smoke signals was tested for conformity with the requirements of MED and the relevant Implementing Regulation (IR). The MarED-Group had already been informed about that project. The project ended on 31 July 2024. As a result, it is proofed that 15 out of 17 products did not fully comply with the requirements of the MED and some even pose a serious risk to the users. It was also found that nearly all type-approval tests had been performed by the NBs at the manufacturers' site using neither an accredited / national approved test lab nor an evaluated test lab, while during the project all products had been tested in evaluated test labs with the presence of personal from the MSAs. Subsequent re-certifications have also been carried out without laboratory testing, meaning that there are numerous products on the market that have not undergone laboratory testing throughout their entire product life. The original deviation from the legal regulation permitted by the MarED Approved Recommendation GEN-010 - as endorsed by COSS 40 in Nov 2016 - has thus become the almost exclusive rule. However, the results of the project show that the existing certification practice without any laboratory tests means that many of the products on the market do not fully meet the requirements.
In order to tackle this issue, note 1* has been inserted in the recommendation.

Recommendation:

Traditionally, certain tests have been carried out at the manufacturer's works using his equipment and personnel under the supervision of a NB. However, others can only be carried out at a qualified laboratory which possesses the necessary competent staff and test equipment.

Note 1 ***This recommendation is not applicable to MED items 1.8, 1.9 and 1.10****

Note 2 Some International Instruments specify that the testing is only to be carried out in a qualified laboratory.

In all cases, the notified body is required to satisfy themselves that the test facility is suitable and that the personnel have the necessary competence to undertake the proposed tests. This assessment should be fully documented by the notified body.

Where it is agreed to carry out the tests at the manufacturer's works, then the testing should be witnessed independently by a competent representative of the Notified Body.

Where testing is carried out in a laboratory, it should be either approved by the national authority (for example on the IMO list) or be an accredited facility for the tests to be conducted. Where not approved by the national authority or accredited, the notified body is responsible for auditing the facilities to verify they are equivalent to those of an accredited laboratory and have the required tests equipment, procedures and staff competency. In such cases, the notified body must carry out and document their audit of the following topics, as a minimum:

- The laboratory meets the intentions of EN ISO/IEC 17025 - "*General Requirements for the competence of testing and calibration laboratories*" or equivalent.
- The required equipment is available and suitable for carrying out the test, i.e. test range, accuracy of result, test report format, etc.
- The equipment is properly calibrated and traceable back to National or International standards.
- The staff is qualified and competent to undertake the tests to be performed.

Tests are to be supervised and accepted by a competent representative of the notified body.